

Reference: 1-278731481

27 February 2015

Peter Eckersley
request-251507-3ca7e71d@whatdotheyknow.com

Julia Snape
Information Requests

information.requests@ofcom.org.uk

Dear Mr Eckersley

Freedom of Information: Right to know request

Thank you for your request for information for the policy and guidelines used when considering whether a person may be issued with an 'old' call sign, together with a list of reasons each of the last 20 such applicants were issued with an old call sign. This was received on 30 January and has been considered under the Freedom of Information Act 2000 (the Act).

Our policy and guidelines on the transfer of call signs are available on our website:
<http://licensing.ofcom.org.uk/radiocommunication-licences/amateur-radio/guidance-for-licensees/transfer-radio-call-signs/>

The availability of Special Contest Call signs (which are also short-form but available only via a formal variation to the licence) is set out on the application:
<http://licensing.ofcom.org.uk/binaries/spectrum/amateur-radio/apply-for-a-licence/ofw286.pdf>

The format of regular call signs is published on the website:
<http://licensing.ofcom.org.uk/radiocommunication-licences/amateur-radio/guidance-for-licensees/amateur-radio-call-signs/>

Please see the following links for relevant FAQs:

<http://licensing.ofcom.org.uk/radiocommunication-licences/amateur-radio/faq/759473>

<http://licensing.ofcom.org.uk/radiocommunication-licences/amateur-radio/faq/759480>

Attached is table showing each of the last 20 applications where an old call sign was reallocated. These fall into the 'club licence' category where the chairperson of the club is deceased and the remaining members have requested to carry on the club and have therefore gained consent to do so. The names of the call sign holders have been withheld under Section 40 of the Act which protects personal information from being disclosed. Section 40 is an absolute exemption under the Act and does not require a public interest test.

By way of background Ofcom are keen that stations maintain a constant identity and that includes amateur radio club stations. If a club were originally licensed (via an individual) using an old call sign, then it would be our preference for the club to continue to use the call sign, even though the original licensee may have died.

Ofcom licenses amateur clubs by granting a licence to an individual (a 'natural person') but on behalf of a club. That is because the constitution of clubs can vary from one club to another and we require clear accountability.

For further information on this please refer to our consultation on amateur radio licences - see paras 2.32 to 2.41: (<http://stakeholders.ofcom.org.uk/binaries/consultations/amateur-radio-licence/summary/condoc.pdf>). We set out our decision in paras 3.17 to 3.22 of the subsequent Statement ([http://stakeholders.ofcom.org.uk/binaries/consultations/amateur-radio-licence/statement/Updating the Amateur Radio Licence.pdf](http://stakeholders.ofcom.org.uk/binaries/consultations/amateur-radio-licence/statement/Updating%20the%20Amateur%20Radio%20Licence.pdf)).

If you are looking to have a callsign transferred or have any further questions on this topic, then please email the team responsible on spetrum.licensing@ofcom.org.uk

If you would like to make a further freedom of information request then please email information.requests@ofcom.org.uk and quote the reference number above.

Yours sincerely

Julia Snape

If you are unhappy with the response or level of service you have received in relation to your request from Ofcom, you may ask for an internal review. If you ask us for an internal review of our decision, it will be treated as a formal complaint and will be subject to an independent review within Ofcom. We will acknowledge the complaint and inform you of the date by which you might expect to be told the outcome.

The following outcomes are possible:

- the original decision is upheld; or
- the original decision is reversed or modified.

Timing

If you wish to exercise your right to an internal review **you should contact us within two months of the date of this letter**. There is no statutory deadline for undertaking internal reviews and it will depend upon the complexity of the case. However, we aim to conclude all such reviews within 20 working days, and up to 40 working days in exceptional cases. We will keep you informed of the progress of any such review. If you wish to request an internal review, you should contact:

Graham Howell
The Secretary to the Corporation
Ofcom
Riverside House
2a Southwark Bridge Road
London SE1 9HA

If you are not content with the outcome of the internal review, you have the right to apply directly to the Information Commissioner for a decision. The Information Commissioner can be contacted at:

Information Commissioner's Office
Wycliffe House
Water Lane
Wilmslow
Cheshire
SK9 5AF